



National Insurance &c. Act 1964

1964 CHAPTER 96

An Act to amend the provisions as to contributions (other than graduated contributions) and benefits under the National Insurance Acts 1946 to 1964 and the National Insurance (Industrial Injuries) Acts 1946 to 1964; to abolish the earnings rule for widowed mother's allowance and widow's pension under the first-mentioned Acts; to improve the allowances payable out of the Industrial Injuries Fund in respect of incapacities arising from pre-1948 employment; to make, with a view to facilitating the preparation of Acts to consolidate the aforementioned Acts and the Family Allowances Acts 1945 to 1964, provision designed to avoid or remove minor doubts, anomalies and differences, and minor complications in administration, in those Acts; and for connected purposes.
[17th December 1964]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) In Schedule 1 (Rates of contributions) to the Insurance Act, for Parts I to IV as set out in Schedule 1 to the National Insurance Act 1963 there shall be substituted the provisions set out in Schedule 1 to this Act. Amendments as to contributions and benefits under Insurance Act.

(2) In section 1(2) of the National Insurance Act 1959 (under which contributions to the National Insurance Fund are to go up in each of the four years 1965, 1970, 1975 and 1980)— 1963 c. 7.
1959 c. 47.

(a) for the words from “four years” to “eighty” there shall be substituted the words “three years 1970, 1975 and 1980”;

(b) in the proviso, for the word "four" there shall be substituted the word "three".

(3) In Schedule 2 to the Insurance Act, for Part I (Rates of periodical benefits and of increases for dependants) as set out in Schedule 2 to the said Act of 1963 there shall be substituted the provisions set out in Schedule 2 to this Act.

1957 c. 1

(6 & 7 Eliz. 2).

1960 c. 5

(9 & 10 Eliz. 2).

(4) The amount of maternity grant shall be increased from sixteen pounds to twenty-two pounds and home confinement grant shall cease to be payable; and Part II of Schedule 2 to the Insurance Act as set out in Part II of Schedule 4 to the National Insurance (No. 2) Act 1957 and amended by section 2(3) of the National Insurance Act 1960 and section 1(4) of the said Act of 1963 shall have effect accordingly.

1964 c. 10.

(5) Section 17(3) of the Insurance Act as substituted by section 4(1) of the Family Allowances and National Insurance Act 1964 (which imposes an earnings rule with respect to widowed mother's allowance and widow's pension) shall cease to have effect; and the age up to which a woman may be awarded a widow's pension shall be raised from sixty to sixty-five, and accordingly—

(a) in sections 17(1)(c), 17(2)(c), 18(1)(a) and 18(4)(a) of the Insurance Act, for the words "pensionable age" there shall be substituted the words "the age of sixty-five"; and

1957 c. 26.

(b) section 2(1)(c) of the National Insurance Act 1957 shall cease to have effect.

1961 c. 6

(10 & 11

Eliz. 2).

(6) In section 5(1)(a)(iii) of the Insurance Act (which as amended by section 7(3) of the Family Allowances and National Insurance Act 1961 authorises the making of regulations providing for excepting insured persons from liability to pay contributions when they are not in receipt of an income exceeding two hundred and eight pounds a year) for the words from "exceeding" onwards there shall be substituted the words "exceeding two hundred and sixty pounds a year or such higher annual income as may from time to time be prescribed".

(7) The enactments specified in paragraphs 14 to 17, 18(a), 19, 20 and 21 of Schedule 5 to this Act shall have effect subject to the amendments respectively specified in those paragraphs, being amendments consequential on subsection (1) or (3) of this section.

(8) The provisions of this section increasing retirement pensions shall not be taken as affecting the provisions of section 74 of the Insurance Act relating to non-contributory pensions.

2.—(1) In Part I (Rates of contributions) of Schedule 2 to the Industrial Injuries Act, for the table set out in Part I of Schedule 3 to the National Insurance Act 1963 there shall be substituted the table set out in Schedule 3 to this Act.

Amendments
as to
contributions
and benefits
under
Industrial
Injuries Act.
1963 c. 7.

(2) The rates or amounts of benefit under the Industrial Injuries Act shall be determined in accordance with Schedule 4 to this Act; and accordingly the enactments specified in paragraphs 1 to 13, 18(b) and (c) and 22 of Schedule 5 to this Act shall have effect subject to the amendments respectively specified in those paragraphs.

3.—(1) The Workmen's Compensation and Benefit (Supplemental) Act 1956 (which provides for the payment of allowances out of the Industrial Injuries Fund in cases of injury or disease arising out of pre-1948 employment and resulting in total disablement or incapacity for work), as amended by section 5(1) of the National Insurance Act 1963, shall have effect with the substitution in section 2 of a rate of allowance of 85 shillings a week for the rate of 65 shillings a week.

Improved
allowances in
respect of
incapacities
arising from
pre-1948
employment.
1956 c. 51.

(2) Section 1(2) of the Family Allowances and National Insurance Act 1961 (which among other things provides for the payment out of the Industrial Injuries Fund of improved allowances in respect of incapacities arising from pre-1948 employment) shall, in relation to the payment of allowances for periods of incapacity for work falling after the coming into force of this subsection, be amended by the substitution for paragraphs (a) and (b) of the following, that is to say—

1961 c. 6
(10 & 11
Eliz. 2).

“ (a) shall be amended by the substitution in subsections (2) and (8) of section 2 of references to 98 shillings and 6 pence and to 82 shillings and 6 pence for the references to 56 shillings and 40 shillings (which operate to limit the maximum weekly rate of allowance under any scheme); and

(b) subject to subsection (4) below, shall authorise the making and variation of schemes so as to provide for the payment of allowances at a weekly rate not exceeding 42 shillings and 6 pence to persons who are or have since the passing of this Act been entitled to weekly payments by way of workmen's compensation in consequence of an accident happening after the beginning of the year 1924”;

and in paragraph 1(d) of Schedule 1 to the said Act of 1961 for the words from “shall not” onwards there shall be substituted the words “shall not exceed 42 shillings and 6 pence.”.

(3) The Industrial Diseases (Benefit) Acts 1951 and 1954 (which authorise the making of schemes for the payment of allowances out of the Industrial Injuries Fund in cases of

1951 c. 4
(15 & 16
Geo. 6 &
1 Eliz. 2).

disease arising out of pre-1948 employment but not entitling the sufferer to workmen's compensation) shall be amended by the substitution in section 3(2) of the Pneumoconiosis & Byssinosis Benefit Act 1951 of the words "or, if the disablement is not total, 50 shillings" for the words "or, if the disablement is not total, 42 shillings and 6 pence" (which were substituted by section 5(3) of the said Act of 1963); and any scheme under the said Acts of 1951 and 1954 which is in force at the coming into force of this subsection shall have effect accordingly.

Minor
amendments
preparatory to
consolidation.

4. The provisions of Schedule 6 to this Act shall have effect with a view to facilitating the preparation of Acts to consolidate in co-ordinated and assimilated form the National Insurance Acts 1946 to 1964, the National Insurance (Industrial Injuries) Acts 1946 to 1964, and the Family Allowances Acts 1945 to 1964, being provisions designed to avoid or remove minor doubts, anomalies and differences and minor complications in administration.

Financial
provisions.

5. There shall be defrayed out of moneys provided by Parliament—

(a) any increase attributable to this Act in the sums payable out of moneys so provided—

1959 c. 47.

(i) under section 2(b) of the Industrial Injuries Act or section 1(3) of the National Insurance Act 1959 (exchequer supplements); or

1945 c. 41.

(ii) under the Family Allowances Act 1945, whether on account of allowances or of the expenses of the Minister;

(b) subject to the provision made by section 60 of the Industrial Injuries Act for reimbursement out of the Industrial Injuries Fund or by section 38 of the Insurance Act for reimbursement out of the National Insurance Fund, any increase attributable to this Act in the expenses of the Minister or of any other government department which are payable out of moneys so provided by virtue of either of those sections as amended or applied by any subsequent enactment;

1961 c. 15.

and for the purpose of this section the expenses of the Minister shall include sums paid by the Minister under section 19(2) of the Post Office Act 1961 which, in accordance with section 13 of the Family Allowances and National Insurance Act 1961, are treated for the purposes of the Family Allowances Act 1945, the Insurance Act or the Industrial Injuries Act as expenses of the Minister in carrying those Acts into effect.

1961 c. 6
(10 & 11
Eliz. 2).

6.—(1) This Act may be cited as the National Insurance &c. Act 1964. Citation,
commence-
ment, repeals,
etc.

(2) This Act, so far as it relates to the subject matters of the following Acts respectively, shall be included among the Acts which may be cited together as— extent,
interpretation,
etc.

(a) the National Insurance Acts 1946 to 1964 ;

(b) the National Insurance (Industrial Injuries) Acts 1946 to 1964 ;

(c) the Family Allowances Acts 1945 to 1964.

(3) Schedule 7 to this Act shall have effect with respect to the commencement of this Act and to the transitional and other matters there dealt with.

(4) Subject to any transitional provisions in the said Schedule 7, the enactments mentioned in Schedule 8 to this Act are hereby repealed to the extent mentioned in the third column of that Schedule.

(5) Without prejudice to the operation, in relation to any matters arising out of this Act, of any provisions relating to Northern Ireland of the Acts referred to in subsection (2) of this section, this Act shall not extend to Northern Ireland.

(6) In this Act—

(a) “ the Insurance Act ” means the National Insurance 1946 c. 67. Act 1946 ;

(b) “ the Industrial Injuries Act ” means the National 1946 c. 62. Insurance (Industrial Injuries) Act 1946.

(7) Any reference in this Act to any other enactment shall, except so far as the context otherwise requires, be construed as a reference to that enactment as amended or applied by any other enactment, including any enactment contained in this Act.

SCHEDULES

SCHEDULE 1

Section 1(1).

PROVISIONS TO BE SUBSTITUTED IN SCHEDULE 1 TO
INSURANCE ACT
CONTRIBUTION RATES

PART I

Employed Persons

Description of employed person 1	Weekly Rate of Contribution	
	Unless by virtue of a non- participating employment 2	If by virtue of a non- participating employment 3
	s. d.	s. d.
Men between the ages of 18 and 70 (not including men over the age of 65 who have retired from regular employment)—		
Earning remuneration at a weekly rate exceeding 100s.	10 2½	12 7½
Earning remuneration at a weekly rate of 100s. or less	5 11½	7 2½
Women between the ages of 18 and 65 (not including women over the age of 60 who have retired from regular employment)—		
Earning remuneration at a weekly rate exceeding 100s.	8 10½	10 4½
Earning remuneration at a weekly rate of 100s. or less	5 1½	5 10½
Boys under the age of 18	7 2½	
Girls under the age of 18	5 10½	

For the purposes of this Part and Part II of this Schedule a person shall be deemed to be earning remuneration at a weekly rate of 100 shillings or less if, but only if, his remuneration does not include the provision of board and lodging by the employer and the rate of the remuneration neither exceeds, nor is deemed in accordance with regulations made under section 78(5) of this Act to exceed, 100 shillings a week, and to be earning remuneration at a weekly rate exceeding 100 shillings in any other case.

PART II
Employers

SCH. 1

Description of employed person 1	Weekly Rate of Contribution	
	Unless by virtue of a non-participating employment 2	If by virtue of a non-participating employment 3
	s. d.	s. d.
Men over the age of 18—		
Earning remuneration at a weekly rate exceeding 100s. or not being liable to pay a contribution as an employed person ...	11 5½	13 10½
Earning remuneration at a weekly rate of 100s. or less and being liable to pay a contribution as an employed person ...	15 8½	19 3½
Women over the age of 18—		
Earning remuneration at a weekly rate exceeding 100s. or not being liable to pay a contribution as an employed person ...	9 11½	11 5½
Earning remuneration at a weekly rate of 100s. or less and being liable to pay a contribution as an employed person ...	13 8½	15 11½
Boys under the age of 18 	7 11½	
Girls under the age of 18 	6 6½	

For the purposes of this Part of this Schedule a person over pensionable age, not being an insured person, shall be treated as an employed person if he would be an insured person were he under pensionable age and would be an employed person were he an insured person.

PART III
Self-Employed Persons

Description of self-employed person 1	Weekly Rate of Contribution 2
	s. d.
Men between the ages of 18 and 70 (not including men over the age of 65 who have retired from regular employment) 	15 10
Women between the ages of 18 and 65 (not including women over the age of 60 who have retired from regular employment) 	13 2
Boys under the age of 18 	9 0
Girls under the age of 18 	7 6

2 X 2*

SCH. 1

PART IV

Non-Employed Persons

Description of non-employed person 1	Weekly Rate of Contribution 2
Men between the ages of 18 and 65	s. d. 12 1
Women between the ages of 18 and 60	9 5
Boys under the age of 18	6 11
Girls under the age of 18	5 4

Section 1(3).

SCHEDULE 2

PROVISIONS TO BE SUBSTITUTED IN PART I OF SCHEDULE 2 TO
INSURANCE ACT*Rates of periodical benefits and of increases for dependants*

1	2	3	4	5	6
Description of Benefit	Weekly rate	Increase for only, elder or eldest quali- fying child	Increase for second quali- fying child	Increase for each additional quali- fying child	Increase for adult dependant (where payable)
	s. d.	s. d.	s. d.	s. d.	s. d.
1. Unemployment or sick- ness benefit under s. 11—					
(a) in the case of a person over the age of 18, not being a married woman ...	80 0	22 6	14 6	14 6	50 0
(b) in the case of a person under the age of 18, not being a married woman—					
(i) during any period during which that person is entitled to an increase of benefit in respect of a child or adult dependant ...	80 0	22 6	14 6	14 6	50 0
(ii) during any other period ...	45 6	—	—	—	—
(c) in the case of a married woman over the age of 18—					
(i) during any period during					

SCH. 2

1	2	3	4	5	6
Description of Benefit	Weekly rate	Increase for only, elder or eldest quali- fying child	Increase for second quali- fying child	Increase for each additional quali- fying child	Increase for adult dependant (where payable)
	s. d.	s. d.	s. d.	s. d.	s. d.
1. Unemployment or sick- ness benefit under s. 11— <i>cont.</i>					
which she is en- titled to an in- crease of benefit in respect of her husband, or dur- ing which she is not residing with her husband nor is he contributing to her mainten- ance at not less than the relevant rate	80 0	22 6	14 6	14 6	50 0
(ii) during any other period	55 0	22 6	14 6	14 6	50 0
(d) in the case of a married woman under the age of 18—					
(i) during any period during which she is en- titled to an in- crease of benefit in respect of her husband, or dur- ing which she is entitled to an in- crease of benefit in respect of a child or an adult dependant other than her husband and she is not residing with her husband nor is he contributing to her maintenance at not less than the relevant rate	80 0	22 6	14 6	14 6	50 0
(ii) during any other period during which she is en- titled to an in- crease of benefit in respect of a child or adult dependant ...	55 0	22 6	14 6	14 6	50 0
(iii) during any other period ...	45 6	—	—	—	—

SCH. 2

1	2	3	4	5	6
Description of Benefit	Weekly rate	Increase for only, elder or eldest quali- fying child	Increase for second quali- fying child	Increase for each additional quali- fying child	Increase for adult dependant (where payable)
	s. d.	s. d.	s. d.	s. d.	s. d.
2. Unemployment or sickness benefit at a weekly rate determined under s. 26 ...	—	22 6	14 6	14 6	50 0
3. Maternity allowance ...	80 0	22 6	14 6	14 6	50 0
4. Widow's allowance ...	112 6	40 0	32 0	30 0	—
5. Widowed mother's allowance	80 0	40 0	32 0	30 0	—
6. Widow's pension ...	80 0	—	—	—	—
7. Guardian's allowance ...	40 0	—	—	—	—
8. Retirement pension— (a) where the pension is payable to a woman by virtue of her husband's insurance and he is alive	50 0	22 6	14 6	14 6	—
(b) in any other case ...	80 0	22 6	14 6	14 6	50 0
9. Child's special allowance	40 0	—	32 0	30 0	—

1. In paragraphs 1(c)(i) and 1(d)(i) of the above table “the relevant rate” means a weekly rate equal to the difference under that table between the rates of benefit applying if the husband is, and if he is not, contributing to the wife's maintenance at not less than the relevant rate.

1957 c. 26.

2. In paragraph 2 of the above table column 6 shall have effect subject to section 26(2)(c) of this Act as substituted by section 2(3) of the National Insurance Act 1957 and amended by paragraph 17 of Schedule 5 to the National Insurance &c. Act 1964.

1953 c. 29.

3. In paragraph 3 of the above table, the increases of maternity allowance specified in columns 3 to 6 apply only in so far as provided for by regulations under section 8 of the National Insurance Act 1953.

SCHEDULE 3

Section 2(1).

TABLE TO BE SUBSTITUTED IN PART I OF SCHEDULE 2 TO
INDUSTRIAL INJURIES ACT*Weekly Rates of Contributions payable by Insured Persons
and Employers*

Class of insured person to whom rate applies 1	Weekly rate of contribution	
	By the insured person 2	By the employer 3
Men over the age of 18	9d.	10d.
Women over the age of 18	6d.	7d.
Boys under the age of 18	5d.	5d.
Girls under the age of 18	3d.	4d.

SCHEDULE 4

Section 2(2).

RATE OR AMOUNT OF BENEFIT ETC. UNDER
INDUSTRIAL INJURIES ACT

Description of benefit, etc.	Amount
1. Injury benefit under s. 11 (weekly rate).	(a) for any period during which the beneficiary is over the age of 18 or is entitled to an increase of benefit in respect of a child or adult dependant ... 135s. (b) for any period during which the beneficiary is between the ages of 17 and 18 and not entitled as aforesaid ... 101s. 3d. (c) for any period during which the beneficiary is under the age of 17 and not entitled as aforesaid ... 67s. 6d.
2. Maximum disablement gratuity under s. 12(6).	£450.

SCH. 4

Description of benefit, etc.	Amount																				
3. Disablement pension under s. 12(7) (weekly rate).	(a) for any period such as is mentioned in paragraph 1(a) of this Schedule, for the several degrees of disablement set out in the first column of the following Table the respective amounts set out in the second column of that Table; (b) for any period such as is mentioned in paragraph 1(b) of this Schedule, three-quarters of the appropriate amount specified in that Table; (c) for any period such as is mentioned in paragraph 1(c) of this Schedule, one-half of the appropriate amount so specified.																				
TABLE <table> <tr> <th data-bbox="634 760 770 815"><i>Degree of disablement</i></th><th data-bbox="849 788 986 815"><i>Weekly rate</i></th></tr> <tr> <td data-bbox="628 815 770 842">100 per cent.</td><td data-bbox="860 815 920 842">135s.</td></tr> <tr> <td data-bbox="634 842 770 869">90 per cent.</td><td data-bbox="860 842 964 869">121s. 6d.</td></tr> <tr> <td data-bbox="639 869 770 897">80 per cent.</td><td data-bbox="860 869 920 897">108s.</td></tr> <tr> <td data-bbox="634 897 770 924">70 per cent.</td><td data-bbox="860 897 964 924">94s. 6d.</td></tr> <tr> <td data-bbox="639 924 770 951">60 per cent.</td><td data-bbox="860 924 920 951">81s.</td></tr> <tr> <td data-bbox="634 951 770 979">50 per cent.</td><td data-bbox="860 951 964 979">67s. 6d.</td></tr> <tr> <td data-bbox="639 979 770 1006">40 per cent.</td><td data-bbox="860 979 920 1006">54s.</td></tr> <tr> <td data-bbox="634 1006 770 1033">30 per cent.</td><td data-bbox="860 1006 964 1033">40s. 6d.</td></tr> <tr> <td data-bbox="639 1033 770 1061">20 per cent.</td><td data-bbox="860 1033 920 1061">27s.</td></tr> </table>		<i>Degree of disablement</i>	<i>Weekly rate</i>	100 per cent.	135s.	90 per cent.	121s. 6d.	80 per cent.	108s.	70 per cent.	94s. 6d.	60 per cent.	81s.	50 per cent.	67s. 6d.	40 per cent.	54s.	30 per cent.	40s. 6d.	20 per cent.	27s.
<i>Degree of disablement</i>	<i>Weekly rate</i>																				
100 per cent.	135s.																				
90 per cent.	121s. 6d.																				
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70 per cent.	94s. 6d.																				
60 per cent.	81s.																				
50 per cent.	67s. 6d.																				
40 per cent.	54s.																				
30 per cent.	40s. 6d.																				
20 per cent.	27s.																				
4. Unemployability supplement under s. 13 (increase of weekly rate of disablement pension).	(a) for any period such as is mentioned in paragraph 1(a) of this Schedule ... 80s. (b) for any period such as is mentioned in paragraph 1(b) or (c) of this Schedule ... 45s. 6d.																				
5. Maximum increase under s. 14 of weekly rate of disablement pension in cases of special hardship.	54s., or the amount (if any) by which the weekly rate of the pension, apart from any increase under s. 15, 17, or 18, falls short of 135s., whichever is the less.																				
6. Maximum increase under s. 15 of weekly rate of disablement pension where constant attendance needed.	(a) except in cases of exceptionally severe disablement ... 55s. (b) in any case ... 110s.																				

SCH. 4

Description of benefit, etc.	Amount
7. Increase under s. 17 of weekly rate of injury benefit or disablement pension in respect of children.	(a) in respect of only, elder or eldest child of beneficiary's family 22s. 6d. (b) in respect of each additional child of beneficiary's family 14s. 6d.
8. Increase under s. 18 of weekly rate of injury benefit or disablement pension in respect of adult dependant.	50s.
9. Widow's pension under s. 19—	
(a) weekly rate where payable by virtue of s. 19(3) (a)–(e).	90s.
(b) maximum higher weekly rate for prescribed period after deceased's death.	112s. 6d.
10. Widower's pension under s. 20 (weekly rate).	90s.
11. Allowance under s. 21 in respect of children of deceased's family—	
(a) weekly rate of allowance under s. 21(1).	(i) in respect of only, elder or eldest qualifying child ... 22s. 6d.
(b) increase under s. 21(1A)	(ii) in respect of each additional qualifying child ... 14s. 6d.
	(i) in respect of only, elder or eldest qualifying child ... 17s. 6d.
	(ii) in respect of second qualifying child ... 17s. 6d.
	(iii) in respect of each additional qualifying child ... 15s. 6d.
12. Maximum under s. 29(1)(a) of aggregate of weekly benefit payable for successive accidents.	(a) for any period such as is mentioned in paragraph 1(a) of this Schedule ... 135s. (b) for any period such as is mentioned in paragraph 1(b) of this Schedule— (i) apart from any increase under s. 14 ... 101s. 3d. (ii) including any such increase 135s. (c) for any period such as is mentioned in paragraph 1(c) of this Schedule ... 67s. 6d.

Sections 1(7),
2(2).

SCHEDULE 5

AMENDMENTS CONSEQUENTIAL ON SS. 1(1) AND (3) AND 2(2)

The National Insurance (Industrial Injuries) Act 1946 (9 & 10 Geo. 6. c. 62)

1. For section 11(3) there shall be substituted—

“(3) Injury benefit shall be an allowance payable at the appropriate weekly rate specified in paragraph 1 of Schedule 4 to the National Insurance &c. Act 1964, and the amount payable for any day of incapacity shall be one-sixth of the weekly rate”.

2. In section 12(6)(a), for the words from “but” onwards there shall be substituted the words “but not in any case exceeding the amount specified in paragraph 2 of Schedule 4 to the National Insurance &c. Act 1964; and”.

3. In section 12(7), for the words from “payable” to the words “that Schedule” there shall be substituted the words “payable at the appropriate weekly rate specified in paragraph 3 of Schedule 4 to the said Act of 1964”; and proviso (b) to section 12(7) and Schedule 3 shall cease to have effect.

4. For section 13(1) there shall be substituted—

“(1) The weekly rate of a disablement pension shall, if as the result of the relevant loss of faculty the beneficiary is incapable of work and likely to remain permanently so incapable, be increased by the appropriate amount specified in paragraph 4 of Schedule 4 to the National Insurance &c. Act 1964”.

5. For so much of section 14(1) as precedes paragraph (a) thereof there shall be substituted—

“(1) The weekly rate of a disablement pension shall, subject to the following provisions of this section, be increased by an amount not exceeding the appropriate amount specified in paragraph 5 of Schedule 4 to the National Insurance &c. Act 1964 if as the result of the relevant loss of faculty the beneficiary”;
and section 14(3) from “and the” onwards shall cease to have effect.

6. For subsections (1) and (2) of section 15 there shall be substituted—

“(1) Where a disablement pension is payable in respect of an assessment of one hundred per cent., then, if as the result of the relevant loss of faculty the beneficiary requires constant attendance, the weekly rate of the pension shall be increased by an amount, not exceeding the appropriate amount specified in paragraph 6 of Schedule 4 to the National Insurance &c. Act 1964, determined in accordance with regulations by reference to the extent and nature of the attendance required by the beneficiary”.

SCH. 5

7. In section 17(1), for the words from "increased" onwards there shall be substituted the words "increased by the appropriate amount or amounts specified in paragraph 7 of Schedule 4 to the National Insurance &c. Act 1964".

8. In section 18, for so much of subsection (1) as precedes paragraph (a) thereof there shall be substituted—

"(1) The weekly rate of injury benefit shall be increased by the amount specified in paragraph 8 of Schedule 4 to the National Insurance &c. Act 1964 for any period during which".

9. In section 19, for so much of subsection (3) as precedes paragraph (a) thereof there shall be substituted—

"(3) Subject to the following provisions of this section, the weekly rate of a pension payable under this section shall be that specified in paragraph 9(a) of Schedule 4 to the National Insurance &c. Act 1964".

10. In section 19(4), for the words "not exceeding" onwards there shall be substituted the words "not exceeding that specified in paragraph 9(b) of Schedule 4 to the said Act of 1964 as may be prescribed".

11. For section 20(2) there shall be substituted—

"(2) In the case of a widower, death benefit shall be a pension at the weekly rate specified in paragraph 10 of Schedule 4 to the National Insurance &c. Act 1964 commencing from the death of the deceased and payable for life".

12. In section 21, as amended by paragraph 1 of Schedule 1 to the Family Allowances and National Insurance Act 1964, for 1964 c. 10, subsections (1), (1A) and (1B) there shall be substituted—

"(1) Subject to the provisions of Schedule 4 to this Act, where at his death the deceased had a family which included a child or children, then, for any period during which a person has a family which includes that child or one or more of those children, that person shall be entitled in respect of that child or in respect of each respectively of those children to death benefit by way of an allowance at the appropriate weekly rate specified in paragraph 11(a) of Schedule 4 to the National Insurance &c. Act 1964.

(1A) Subject to the provisions of Schedule 4 to this Act, where the person to whom an allowance under subsection (1) of this section is payable is the widow of the deceased and is for the time being also entitled to death benefit (other than a gratuity) under section 19 of this Act, the weekly rate of that allowance shall be increased by the appropriate amount specified in paragraph 11(b) of Schedule 4 to the said Act of 1964."

13. In section 29—

(a) in subsection (1)(a), for the words from "exceeding" onwards there shall be substituted the words "exceeding the appropriate amount specified in paragraph 12 of Schedule 4 to the National Insurance &c. Act 1964";

SCH. 5

- (b) in subsection (2), for the words "a case to which sub-paragraph (ii) or (iii) of that paragraph applies" there shall be substituted the words "the case of a beneficiary under the age of seventeen".

The National Insurance Act 1946
(9 & 10 Geo. 6. c. 67)

1964 c. 10.

14. In section 10(2)(a), the words "and Part IA" inserted by paragraph 1(1) of Schedule 2 to the Family Allowances and National Insurance Act 1964 shall cease to have effect.

15. In section 23 as amended by paragraph 1(3) of Schedule 2 to the said Act of 1964, for subsections (1), (1A) and (1B) there shall be substituted—

"(1) Subject in the case of a retirement pension to the following provisions of this section, the weekly rate of unemployment benefit, sickness benefit, a retirement pension or a widow's allowance shall, for any period for which the beneficiary has a family which includes a child or children, be increased in respect of that child or each respectively of those children by the appropriate amount specified in relation to the benefit in question in column 3, 4 or 5 of Part I of Schedule 2 to this Act.

(1B) The weekly rate of a widowed mother's allowance payable by virtue of section 17(1)(b)(i) of this Act shall be increased for any period in respect of the child or, if more than one, each respectively of the children falling within paragraph (aa), (bb) or (cc) of the said section 17(1)(b)(i) for the time being included in her family by the appropriate amount specified in relation to that allowance in the said column 3, 4, or 5."

16. In section 24(1), for the words "the fifth column" there shall be substituted the words "column 6".

1957 c. 26.

17. In section 26(2)(c) as substituted by section 2(3) of the National Insurance Act 1957, for the words from "that section" onwards there shall be substituted the words "the amount of any increase of the weekly rate of unemployment or sickness benefit shall be that which would have been applicable by virtue of that section in the case of such an increase of the weekly rate of the retirement pension".

The National Assistance Act 1948
(11 & 12 Geo. 6. c. 29)

18. In paragraph 5(2) of Schedule 2 as amended by section 3(1) of the Family Allowances and National Insurance Act 1964—

- (a) in sub-paragraphs (e)(i) and (ii) and (f)(i), for the words "Part IA" there shall be substituted the words "Part I";
- (b) in sub-paragraph (e)(iii), for the words from "under" onwards there shall be substituted the words "under sub-paragraph (i) or (ii) of paragraph 11(b) of Schedule 4 to the National Insurance &c. Act 1964";
- (c) in sub-paragraph (f)(ii), for the words from "under" onwards there shall be substituted the words "under sub-paragraph (iii) of the said paragraph 11(b)".

The National Insurance Act 1953
(1 & 2 Eliz. 2. c. 29)

SCH. 5

19. In section 8(3) as amended by paragraph 4 of Schedule 4 to the National Insurance Act 1960—

1960 c. 5
(9 & 10 Eliz. 2).

(a) in paragraph (a), for the words from “such amount in respect of that child” onwards there shall be substituted the words “the appropriate amount in respect of that child or each respectively of those children specified in relation to maternity allowance in column 3, 4 or 5 of Part I of Schedule 2 to the principal Act”;

(b) in paragraph (b), for the words “the fifth column” there shall be substituted the words “column 6”.

The National Insurance Act 1957
(5 & 6 Eliz. 2. c. 26)

20. In section 5(3), for the words from “the weekly rate of the allowance” to the end of paragraph (b) there shall be substituted the words “the weekly rate of the allowance shall be the amount specified in relation thereto in column 2 of Part I of Schedule 2 to the principal Act increased in respect of each respectively of those children other than the elder or eldest by the appropriate amount specified in relation to that allowance in column 4 or 5 of the said Part I”.

The National Health Service Contributions Act 1957
(5 & 6 Eliz. 2. c. 34)

21. Any provision of this Act or of any other Act, whether passed before or after this Act, which may be cited together with the Insurance Act in a citation which uses the phrase “the National Insurance Acts” shall be included among the National Insurance Acts within the meaning of the National Health Service Contributions Act 1957; but any reference in the said Act of 1957 to contributions under the National Insurance Acts shall be construed as a reference only to contributions under section 2(2) of the Insurance Act.

The Family Allowances and National Insurance Act 1964
(1964 c. 10)

22. In paragraph 2(2) of Schedule 1, for the words “Part II of the Table in the foregoing paragraph” there shall be substituted the words “paragraph 11(b) of Schedule 4 to the National Insurance &c. Act 1964.”.

SCHEDULE 6

Section 4.

MINOR AMENDMENTS PREPARATORY TO CONSOLIDATION
Introductory

1. In this Schedule—

“the Act of 1945” means the Family Allowances Act 1945; 1945 c. 41.

“the Act of 1957” means the National Insurance Act 1957; 1957 c. 26.

“the Act of 1961” means the Family Allowances and National Insurance Act 1961. 1961 c. 6
(10 & 11 Eliz. 2).

SCH. 6

Collection of contributions

S.I. 1948/1274.

2. Section 6(5) of the Insurance Act (which provides for the making of arrangements with any employer who is liable to pay employer's contributions under that Act whereby, in respect of persons engaged by that employer through an employment exchange or other agency approved by the Minister, or in the employ of that employer on the date of the arrangement, certain duties of the employer under that Act are to be undertaken on behalf of the employer by the employment exchange or other agency) shall have effect as if for the words from "whereby" to "by the Minister" there were substituted the words "and whose practice it is to engage persons through an employment exchange or other agency approved by the Minister, whereby, in respect of persons so engaged by that employer"; and the said section 6(5) shall apply to contributions or employers under the Industrial Injuries Act as it applies to contributions or employers under the Insurance Act, and accordingly Part IV of Schedule 2 to the Industrial Injuries Act (which as amended by regulation 12(1) of the National Insurance and Industrial Injuries (Collection of Contributions) Regulations 1948 makes provision corresponding to that of the said section 6(5)) and the said regulation 12(1) shall cease to have effect.

3. Regulation 7 of the said regulations of 1948 (which relates to the recovery by an employer of an insured person's contributions under the Insurance Act or the Industrial Injuries Act paid by the employer) shall have effect, and be deemed always to have had effect—

(a) as if in the proviso to paragraph (1) of that regulation for the words "next following paragraph" there were substituted the words "two next following paragraphs"; and

(b) notwithstanding anything in the proviso to section 5(1) of the Industrial Injuries Act;

and accordingly the proviso to the said section 5(1) shall cease to have effect.

Other provisions as to contributions

4. So much of section 61(c) of the Insurance Act as provides that, for the purpose of calculating the yearly average of the contributions paid by or credited to a person entering into insurance under the age of sixteen, he shall not be deemed to attain or to have attained school leaving age before the date on which he attains the age of sixteen shall apply also to any person who enters into insurance over the age of sixteen if he attained that age after 5th July 1948.

5. In the following enactments, in the following places respectively, that is to say—

(a) in section 3(4) of the Industrial Injuries Act and in section 2(6) of the Insurance Act (which provide that an employer or insured person who fails to pay any contribution which he is liable to pay under the Act in question shall be guilty of an offence) and in section 3(3) of the National Insurance

SCH. 6

Act 1959 (which applies the said section 2(6) to cases where a person fails to pay sums which he is required by certain regulations so to pay), after the words "fails to pay", and

- (b) in section 9(7) of the said Act of 1959 (which relates to the making of payments in lieu of contributions), after the word "make", and
- (c) in section 69(1) of the Industrial Injuries Act (which makes provision with respect to an employer convicted of the offence under the said section 3(4) of failing to pay a contribution) after the word "contribution",

there shall be inserted the words "at or within the time prescribed for the purpose", and in the said sections 3(3) and 9(7), after the word "failure" wherever it occurs, there shall be inserted the word "so"; but where under any provision of the said section 69 or of regulations made under section 8(1)(e) of the Insurance Act a person convicted of an offence would, but for this paragraph, be liable to pay a sum to the Industrial Injuries Fund or the National Insurance Fund in respect of a contribution under the Industrial Injuries Act or the Insurance Act or of an amount by way of a payment in lieu of contributions under the said Act of 1959, he shall not be so liable under that provision unless that contribution or amount remains unpaid at the date of the conviction.

Benefit in respect of children

6. The Act of 1945, the Industrial Injuries Act and the Insurance Act shall have effect as if in section 21(2) of the Act of 1945 (which provides that for the purposes of that Act a child being legitimate issue of a deceased spouse of any person by an earlier marriage of the deceased spouse to another shall be treated as issue of that person) after the word "another" there were inserted the words "including such a marriage which is a void marriage within the meaning of section 2 of the Legitimacy Act 1959".

1959 c. 73.

7. Section 30(2) of the Industrial Injuries Act (which provides that, except in certain cases, where a person is entitled to benefit under section 21 of that Act in respect of a child of his family, the allowances payable for that family under the Act of 1945 shall be such only as would be payable if that child were not included in the family) shall cease to have effect.

8. For the avoidance of doubt, it is hereby declared that for the purposes of section 6(4) of the Act of 1957 (which provides that an amount otherwise payable in respect of a child shall not be payable unless one of the conditions specified in the said section 6(4) is satisfied) a child's special allowance is to be treated as a payment in respect of an only, elder or eldest child with respect to whom the conditions specified in section 5(2)(b) and (c) of that Act are satisfied, without prejudice, however, to any payment by way of an increase of the allowance in respect of any other such child under section 5(3) of that Act.

9. Where a person is entitled in respect of a child to a guardian's allowance under the Insurance Act, the amount, if any, payable to that or any other person by way of any other benefit under that

SCH. 6 Act or the Industrial Injuries Act in respect of children of any family shall be such, and such only, as would be payable if the first-mentioned child were not included or treated as included in any family; and accordingly, in regulation 5 of the National Insurance (Overlapping Benefits) Regulations 1948 as in force immediately before the commencement of this Act, paragraphs (1A), (1B) and (1C), and in paragraph (2) the words "and in sub-paragraphs (A)(ii) and (B)(ii) of paragraph (1A)" shall cease to have effect.

S.I. 1948/2711. 10. Section 3(3) of the Act of 1961 (which provides that a married woman shall not be entitled to any increase of benefit under section 17 of the Industrial Injuries Act in respect of children of her family for any period during which she is residing with her husband and he is not incapable of self-support) shall apply to any increase of benefit under the Insurance Act for a child of the family of a woman and her husband as it applies to an increase of benefit under the said section 17; and accordingly regulation 11 of the National Insurance (Married Women) Regulations 1948 and regulation 12(4) of the National Insurance (Maternity Benefit and Miscellaneous Provisions) Regulations 1954 (which make the like provision with respect to benefit under the Insurance Act) shall cease to have effect.

S.I. 1948/1470.

S.I. 1954/189.

Other provisions as to benefit

11. In section 21(5) of the Insurance Act (which provides that a woman who on attaining pensionable age is married shall not be entitled to a retirement pension by virtue of her own insurance unless the number of contributions paid by or credited to her in respect of the period between the date of the marriage and her attaining that age is not less than one half of the number of complete contribution weeks in the period)—

(a) after the word "unless" there shall be inserted the word "either"; and

(b) at the end there shall be added the words "or the said period is less than three years".

12. For the avoidance of doubt, section 21(6) of the Insurance Act (which allows a woman who immediately before attaining pensionable age is a widow to elect that, in calculating for the purpose of her right to a retirement pension by virtue of her own insurance the yearly average of the contributions paid by or credited to her, her husband's contributions may in certain circumstances be taken into account instead of her own) shall have effect, and be deemed always to have had effect, as if in paragraph (a) for the words "her husband's death" there were substituted the words "the death of her husband (being, if she has been married more than once, her last husband)".

13. For the avoidance of doubt, section 5(3) of the Act of 1961 (which provides that except in certain cases the said section 5, in relation to a retirement pension payable to a woman by virtue of her husband's insurance, shall have effect in place of section 20(4) of the Insurance Act as applied by section 21(3) of that Act) shall have effect and be deemed always to have had effect as if at the

end of the said section 5(3) there were added the words "but subject to subsection (5) of the said section 20 as so applied". SCH. 6

14. For the purposes of section 4(5) of the National Insurance Act 1959 (which provides that, where a person does not retire from regular employment on attaining pensionable age, then for the purpose of calculating the graduated retirement benefit payable to him from the date of his retirement there shall be added to the amount of the graduated contributions properly paid by him one-half of the aggregate graduated retirement benefit which would have been payable to him for the period before that date if he had retired from regular employment on attaining pensionable age), the Minister may by regulations provide for treating all or any of the graduated contributions paid by a person in the income tax year in which he attained pensionable age as having been paid before, or as having been paid after, the day on which he attained that age, whether or not the contribution in question was so paid. 1959 c. 47.

Disqualification for, and interim payment of, benefit

15. The following provisions of the Industrial Injuries Act (which relate to the disentitlement of persons to benefit in certain circumstances) shall be amended as follows, that is to say—

(a) in section 32(2)—

(i) for the words "the forfeiture of injury benefit by a claimant or beneficiary" there shall be substituted the words "disqualifying a claimant or beneficiary for the receipt of injury benefit";

(ii) for the words "the forfeiture of benefit by a claimant or beneficiary" there shall be substituted the words "disqualifying a claimant or beneficiary for the receipt of benefit";

(b) in the proviso to section 32(2)—

(i) for the words "the forfeiture of benefit" there shall be substituted the words "disqualification for the receipt of benefit";

(ii) for the word "forfeiture" in the last place where it occurs there shall be substituted the word "disqualification";

(c) in section 57(1)(e), for the words "forfeiture of benefit in respect of pneumoconiosis by any person" there shall be substituted the words "disqualification for the receipt of benefit in respect of pneumoconiosis of any person";

(d) in sections 32(2) and 57(1)(e) and (f)(ii), for the words "reasonable cause" wherever they occur there shall be substituted the words "good cause";

and any reference in any regulations made by virtue of the said section 32(2) or 57(1)(e) or (f)(ii) and in force at the commencement of this paragraph shall be construed as if amendments corresponding to those made by this paragraph in the said sections 32(2) and 57(1)(e) and (f)(ii) had been made in those regulations.

SCH. 6

16. Regulations under section 52(1) of the Industrial Injuries Act (which relates to interim payments in respect of a claim for benefit) may make provision for treating any benefit paid to any person by virtue of the regulations which it is subsequently decided is not payable as paid on account of any other benefit under that Act or the Insurance Act which it is decided was payable to him in respect of the same period.

Determination of questions

17. For the avoidance of doubt, it is hereby declared that any decision of the Minister in the exercise of his discretion by virtue of the Schedule to the Act of 1945 may be given so as to have effect with respect to a period before the date of the decision.

1959 c. 18.

18. For the avoidance of doubt, it is hereby declared that the repeal by the Family Allowances and National Insurance Act 1959 of the word "not" where it first occurs in section 43(2) of the Insurance Act as originally enacted does not affect the method, or the effect, of the determination of any such question as by paragraph (b) of the said section 43(2) is excluded from the operation of that paragraph.

19. Any requirement by virtue of Part III of the Industrial Injuries Act or section 43 of the Insurance Act that a claim or question shall be submitted to an insurance officer for determination either by that officer or by a tribunal to which that claim or question is referred for the purpose by that officer shall include power to submit different aspects of the same claim or question to different insurance officers for such determination.

Provisions relating to subordinate legislation

20. Section 61(2) of the Industrial Injuries Act (which requires the Minister to refer to the Industrial Injuries Advisory Council for consideration and advice any proposals to make regulations under that Act) shall not apply to regulations under section 84 of that Act (which relates to reciprocal arrangements for Northern Ireland), without prejudice, however, to the power of the Minister so to refer any proposals to make such regulations.

1956 c. 47.

21. In section 76(1) of the Insurance Act (which provides that regulations under certain of the provisions of that Act shall not be made unless a draft thereof has been laid before Parliament and has been approved by resolution of each House of Parliament) after the words "sixty-seven" there shall be inserted the words "or under section 2 of the National Insurance Act 1956"; and section 3 of the said Act of 1956 (which makes the like provision with respect to regulations under the said section 2 as is made by the said section 76(1)) shall cease to have effect.

22. Where any regulations to which subsection (5) of section 77 of the Insurance Act applies are laid before Parliament at a time when Parliament is not sitting, the requirement of that subsection that there shall be laid together with the regulations such a report and such a statement as are mentioned in that subsection shall be deemed to be satisfied as respects either House of Parliament if

that report and that statement are laid before that House not later than the second day on which that House sits after the laying of the regulations.

SCH. 6

23. In paragraph 14(1)(b) of Schedule 3 to the Act of 1961 (which extends to the provisions of any enactment directed to be construed as one with the Insurance Act the powers conferred by that Act or any enactment construed as one with it to prescribe modifications of, or exceptions or additions to, the provisions of that Act) after the words "additions to" there shall be inserted the words "or to prescribe or make provision by Order in Council for modifications or adaptations of".

Miscellaneous amendments

24. In section 34(2) of the Industrial Injuries Act (which defines approved hospital treatment) the words "with the approval of the Minister" shall cease to have effect.

25. Regulations under section 59 of the Insurance Act shall no longer be required to provide for excepting a woman from insurance during any period during which she is married and is a non-employed person, but shall continue to provide for excepting a woman from liability to pay ungraduated contributions as an insured person during any period during which she is married; and accordingly, in subsection (2)(a) of the said section 59, sub-paragraph (i) and in sub-paragraph (ii) the words "and is not excepted from insurance" shall cease to have effect.

26. For the avoidance of doubt, it is hereby declared that the power conferred by section 78(5) of the Insurance Act to prescribe the basis of the calculation or estimation for the purposes of that Act of a person's earnings or the rate of a person's remuneration includes power to prescribe that payments of a particular class or description made or falling to be made to or by that person shall, to such extent as may be prescribed, be disregarded or, as the case may be, be deducted from the amount of his earnings or remuneration.

27. In Part II of Schedule 1 to the Industrial Injuries Act, paragraph 4 (by virtue of which certain employment of a casual nature is not an insurable employment) shall cease to have effect.

28. In section 7(7) of the National Insurance Act 1959, proviso (a) (which provides that no certificate that an employment is to be treated as a non-participating employment and no cancellation, surrender or variation of such a certificate shall have effect from a date earlier than the beginning of the contribution week following that in which it is issued or made) shall have effect as if at the beginning there were inserted the words "except in such circumstances as may be prescribed". 1959 c. 47.

29. Where, under any enactment or otherwise, payments fall to be made by way of adjustment between the National Insurance Fund and the Industrial Injuries Fund, then, in such cases or classes of case as the Minister may with the consent of the Treasury determine, the amount due from either of those Funds to the other shall

- SCH. 6 be taken to be such as may be so determined and payments on account thereof shall be made at such times and in such manner as the Minister may with the like consent direct.

Section 6(3).

SCHEDULE 7

COMMENCEMENT, TRANSITIONAL PROVISIONS AND CONSTRUCTION

General provisions for appointed days

1.—(1) The provisions of this Act shall not come into force until such day as the Minister may by order appoint, and different days may be appointed for different purposes of this Act or for the same purposes in relation to different cases or classes of case.

(2) Any such order may—

(a) if the day thereby appointed is appointed for some only of the purposes of this Act or in relation only to some cases or classes of case, contain such incidental or supplemental provisions as appear to the Minister to be necessary or expedient as respects the period or any part of the period when this Act is to have a partial operation only, and, in particular, provisions modifying and supplementing, in relation to the period to which the order is to apply, the provisions of this Act or any Act amended by this Act ;

(b) be varied or revoked by a subsequent order under this sub-paragraph.

(3) Any statutory instrument containing an order under this paragraph shall be laid before Parliament after being made.

Effect of awards made before, or in respect of the period beginning before, appointed or prescribed day

2.—(1) Where an award of any benefit under the Industrial Injuries Act or the Insurance Act has been made, whether before or after the passing of this Act, before the day appointed or prescribed for the payment of benefit of the description to which the award relates at a higher weekly rate by virtue of this Act or any regulations made in consequence thereof, then, subject to such exceptions or conditions as may be prescribed by regulations made by the Minister, the benefit shall, without any claim being made therefor, become payable (except as respects any period falling before that day) at the higher weekly rate, and the award shall have effect accordingly.

(2) Where any such award—

(a) is made after a day has been appointed or prescribed for the payment of benefit of the description to which the award relates at a higher weekly rate or within a higher maximum weekly rate by virtue of this Act or any regulations made in consequence thereof ; and

(b) is made before that day,

the award may provide for the benefit to be paid, as from that day, at the higher weekly rate, or as the case may be, at any weekly rate within the higher maximum rate.

Variation of disablement gratuities

SCH. 7

3. Any regulations made in consequence of this Act varying the scale of disablement gratuities prescribed under section 12(6) of the Industrial Injuries Act may provide that the scale as varied shall apply only in cases where the period taken into account by the assessment of the extent of the disablement in respect of which the gratuity is awarded begins or began after such day as may be prescribed.

Widow's pension

4. Where, at the day appointed under this Schedule in relation to the provisions of this Act increasing the age up to which a woman may be awarded a widow's pension, a widow under the age of sixty-five is, or but for her earnings would be, in receipt of a retirement pension and either—

- (a) immediately before her retirement she was, or would but for her earnings have been, entitled to a widow's pension ;
or
- (b) the retirement pension is, or but for an election by her under section 21(4) of the Insurance Act would be, a pension by virtue of her deceased husband's insurance,

then, subject to any regulations made by the Minister, a widow's pension may be paid to her without any further claim or award.

Maternity grant

5. The provisions of this Act increasing maternity grants shall not affect—

- (a) the amount of such a grant where the confinement occurred before the day appointed in relation to those provisions under this Schedule ; or
- (b) the amount of any such grant to which a woman has become entitled before the said day by virtue of regulations made under section 14(4) of the Insurance Act as set out in Schedule 1 to the National Insurance Act 1953 :

1953 c. 29.

Provided that regulations made by the Minister may provide for increasing to the amount provided for by this Act the amount of a maternity grant to which a woman has become entitled before the said day (whether payment has already been made or not) if the confinement in question has not occurred before that day and her pregnancy has not been otherwise terminated before that day.

Home confinement grant

6. The provisions of this Act abolishing home confinement grant shall not affect entitlement to or the amount of such a grant where the confinement occurred before the day appointed in relation to those provisions under this Schedule.

SCH. 7

Benefit in respect of children

1957 c. 26.

7. Where, in the case of any such payment in respect of a child as is mentioned in paragraphs (a) to (f) of section 6(4) of the National Insurance Act 1957, being a payment for a period beginning on or after the day appointed under this Schedule in relation to the provisions of this Act increasing the amount of that payment, account is to be taken under paragraph (ii) of the said section 6(4) of contributions to the cost of providing for that child for a period before that day, the amount with which the weekly rate of those contributions is to be compared under the said paragraph (ii) shall be that which would have been payable apart from that paragraph if this Act had not been passed.

Allowances in respect of incapacities arising from pre-1948 employment

1956 c. 51.

8.—(1) Where an allowance under the Workmen's Compensation and Benefit (Supplementation) Act 1956, or under the Industrial Diseases (Benefit) Acts 1951 and 1954, is or has been awarded before the increase date, the allowance shall, without any claim being made, become payable (except as respects any period falling before the increase date) at the higher weekly rate provided for by section 3 of this Act, and the award shall have effect accordingly.

(2) Where any such award is made before the increase date, but after that date has been appointed, the award may provide for the allowance to be paid as from that date at the higher weekly rate.

(3) In the foregoing provisions of this paragraph "the increase date" means the day appointed for the higher weekly rate to become effective under subsection (1) or subsection (3), as the case may be, of section 3 of this Act.

1951 c. 22.

(4) Section 1(4) of the Workmen's Compensation (Supplementation) Act 1951, so far as it prohibits the making of a scheme under that Act unless a draft of the scheme has been laid before Parliament and approved by a resolution of each House, shall not apply to any such scheme made before the expiration of the period of six months beginning with the date of the passing of this Act if the statutory instrument containing the scheme states that the scheme is made in consequence of this Act; but any statutory instrument containing a scheme which, by virtue of the foregoing provision, is not required to be laid and approved in draft as aforesaid before being made shall be subject to annulment in pursuance of a resolution of either House of Parliament.

Assistance grants

1963 c. 7.

9. Section 6 of the National Insurance Act 1963 (which makes transitory provision as to assistance grants) shall have effect for the purposes of this Act as if—

(a) in subsection (1), for the words "the passing of this Act" there were substituted the words "19th November 1964"; and

- (b) for any other reference to that Act or Schedule 4 thereto there were substituted a reference to this Act or, as the case may be, this Schedule.

SCH. 7

General transitional provision as to regulations

10. Section 61(2) of the Industrial Injuries Act (which requires any proposal to make regulations to be referred to the Industrial Injuries Advisory Council for consideration and advice) and section 77 of the Insurance Act (which requires a preliminary draft of regulations to be submitted to the National Insurance Advisory Committee before the regulations are made or, in certain cases, before a draft is laid before Parliament) shall not apply to any regulations made, or to any draft of regulations laid before Parliament, before the expiration of the period of six months beginning with the date of the passing of this Act if the instrument containing the regulations or, as the case may be, the draft of that instrument states that the regulations are made in consequence of this Act.

Construction

11. This Act—

- (a) in so far as it relates to the subject matter of the National Insurance Acts 1946 to 1964 shall be construed as one with the Insurance Act ;
- (b) in so far as it relates to the subject matter of the National Insurance (Industrial Injuries) Acts 1946 to 1964 shall be construed as one with the Industrial Injuries Act.

SCHEDULE 8

Section 6(4).

ENACTMENTS REPEALED

Chapter	Short Title	Extent of Repeal
9 & 10 Geo. 6. c. 62.	The National Insurance (Industrial Injuries) Act 1946.	Section 3(5) from “and” onwards. In section 5(1), the proviso. In section 12(7), proviso (b). Section 14(3) from “and the” onwards. Section 30(2). In section 34(2), the words “ with the approval of the Minister ”. In Schedule 1, paragraph 4 of Part II. Part IV of Schedule 2. Schedule 3.

SCH. 8

Chapter	Short Title	Extent of Repeal
9 & 10 Geo. 6. c. 67.	The National Insurance Act 1946.	In section 10(1)(c), the words "home confinement grant". In section 10(2)(a), the words "and Part IA" and the words "a home confinement grant." Section 14A. Section 17(3). Section 59(2)(a)(i). In section 59(2)(a)(ii), the words "and is not excepted from insurance". Part IA of Schedule 2.
11 & 12 Geo. 6. c. 42.	The National Insurance (Industrial Injuries) Act 1948.	Section 1(2)(a)(i) and (3).
14 & 15 Geo. 6. c. 34.	The National Insurance Act 1951.	Section 3(2).
1 & 2 Eliz. 2. c. 29.	The National Insurance Act 1953.	Section 4(3). In Schedule 1, paragraph 6.
4 & 5 Eliz. 2. c. 47.	The National Insurance Act 1956.	In section 2, the words "subsection (3) of section 17 and" and the words "allowance or" in both places where they occur. Section 3.
4 & 5 Eliz. 2. c. 50.	The Family Allowances and National Insurance Act 1956.	In the Schedule, paragraph 5.
5 & 6 Eliz. 2. c. 26.	The National Insurance Act 1957.	Section 2(1)(c).
7 & 8 Eliz. 2. c. 47.	The National Insurance Act 1959.	Section 5(5) from "but" onwards.
9 & 10 Eliz. 2. c. 5.	The National Insurance Act 1960.	Section 2(3). In Schedule 1, paragraph 4 of Part III. In Schedule 4, paragraph 4(a).
9 & 10 Eliz. 2. c. 13.	The National Health Service Contributions Act 1961.	In Schedule 2, paragraph 1(1) to (4) and (6) and paragraph 1(5) from the beginning to "sub-paragraphs".
10 & 11 Eliz. 2. c. 6.	The Family Allowances and National Insurance Act 1961.	In Schedule 3, paragraph 13(3).
1963 c. 7.	The National Insurance Act 1963.	Section 1(1), (3), (4) and (5). Section 2(1). Section 4. Section 5(1) to (3). Schedules 1 to 3. In Schedule 4, paragraph 9.

SCH. 8

Chapter	Short Title	Extent of Repeal
1964 c. 10.	The Family Allowances and National Insurance Act 1964.	Section 2(1) and (4). Section 3(3). Section 4(1), (3) and (4). In Schedule 1, paragraph 1. Schedule 2.